



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 11 judgments on Tuesday 5 September 2017 and 37 judgments and / or decisions on Thursday 7 September 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 5 September 2017

[Tekin and Arslan v. Belgium \(application no. 37795/13\)](#)

The applicants, İlhami Tekin and Döne Arslan, are two Belgian nationals who also have Turkish nationality. They were born in 1961 and 1960 and live in Charleroi and Anvers (Belgium). The case concerns the death of their son, Michael Tekin (born in 1978), in Jamioulx Prison in 2009.

Between 2007 and 2009 Michael Tekin was placed on three occasions in the psychiatric wing of Jamioulx Prison. On 3 July 2009 he was released, subject to a number of conditions. On 7 August 2009 the public prosecutor attached to the Charleroi Court of First Instance decided that he was to be returned to the psychiatric wing of Jamioulx Prison for failure to comply with the conditions of his release. He was placed in an individual cell in an ordinary section of Jamioulx Prison.

On 8 August 2009 the deputy prison governor decided to apply specific security measures to the applicants' son for a seven-day period. Prison officer R., together with two other officers (L. and D.), were instructed to inform him about the measures in question. When notified, Michael Tekin allegedly provoked R. to such an extent that the three prison officers believed that they were about to be attacked. R. then decided to place Michael Tekin in an isolation cell. In order to remove him from his cell, R. used a restraint technique known as an "arm lock" ("*clé de bras*"); L. and D. helped him to maintain it while a dozen members of staff arrived as back up. On reaching the isolation cell the prison officers noted that Michael Tekin's face was cyanotic. The medical staff intervened, unsuccessfully. Michael Tekin was pronounced dead at 12.50 p.m.

An investigation was opened automatically and the witnesses were questioned. An autopsy was carried out. In March 2012 R., L. and D. were sent for trial before the Charleroi Criminal Court, which acquitted them of manslaughter. Michael Tekin's parents lodged an appeal in their capacity as civil parties. Those proceedings are pending before the Mons Court of Appeal.

Relying on Articles 2 (right to life) and 3 (of inhuman or degrading treatment) of the European Convention on Human Rights, Michael Tekin's parents complain about their son's death; they consider that the force used was neither absolutely necessary nor proportionate.

[Bayram Koç v. Turkey \(no. 38907/09\)](#)

[Bozkaya v. Turkey \(no. 46661/09\)](#)

[Türk v. Turkey \(no. 22744/07\)](#)

The applicants in these three cases, Bayram Koç, Ayhan Bozkaya and Mehmet Ali Türk, are Turkish nationals born in 1980, 1975 and 1972 respectively. Mr Koç lives in Diyarbakir while Mr Bozkaya and Mr Türk are currently in detention in Kahramanmaraş and Antalya (Turkey), respectively, the latter serving a life sentence. They complain about not having had access to a lawyer while being questioned by the police, in the case of Bayram Koc due to a systemic restriction of the right to have access to a lawyer under the law applicable at the time of his arrest – as he was accused of

committing an offence that fell within the jurisdiction of the state security courts, which were later abolished – and in the other two cases as a result of the applicants’ alleged waiver of their right to have access to a lawyer.

All three applicants were questioned by the police, in 2003 and 2004 respectively, on suspicion, in particular, of membership in an illegal organisation. They all confessed, in the absence of a lawyer, to being members of an illegal organisation and, in the cases of Mr Bozkaya and Mr Türk, to having committed violent offences in connection with their membership in these organisations. During court hearings they later retracted parts of their confessions. All three applicants were convicted – Mr Koç of the membership in an armed organisation, and both Mr Bozkaya and Mr Türk of the offence of, in particular, seeking to remove part of the national territory from the State’s control – and given prison sentences. Their convictions were eventually upheld by the Court of Cassation in 2010, 2009 and 2006, respectively.

Relying in particular on Article 6 §§ 1 and 3 (c) (right to a fair trial / right to legal assistance of own choosing) of the European Convention, all three applicants complain that their right to a fair trial was violated because their convictions were based on confessions obtained through unlawful coercion tactics and in the absence of a lawyer. Mr Türk maintains in particular that he was led to believe that his confession was a mere formality because the offence for which he thought he was charged was time-barred.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court’s online database [HUDOC](#).

They will not appear in the press release issued on that day.

Sinex DOO v. Montenegro (no. 44354/08)

Vučinić v. Montenegro (no. 44533/10)

Çamyar v. Turkey (no. 2) (no. 42900/06)

Khaldarov v. Turkey (no. 23619/11)

Özer v. Turkey (no. 47257/11)

Uncuoğlu v. Turkey (no. 13196/07)

Yurtsever v. Turkey (no. 42320/10)

Thursday 7 September 2017

[Ezgeta v. Croatia](#) (no. 40562/12)

The applicant, Iva Ezgeta, is a Croatian national who was born in 1956 and lives in Novigrad (Croatia). The case concerns her complaint of having been deprived of access to the Supreme Court and of the lack of a fair hearing in a set of civil proceedings.

In December 1999 Ms Ezgeta concluded a purchase agreement with a company, G.P., in respect of several plots of land in Novigrad surrounding a number of residential buildings constructed by the company. In October 2000, G.P. brought a civil action before the Buje Municipal Court against the Novigrad Municipality – from which it had received the plots of land in 1971 for permanent use with a view to the construction of the buildings – requesting that the data concerning the size of certain plots be corrected in the land register. Subsequently Ms Ezgeta made a request to join the company in the proceedings as an intervener, since she had bought some of the plots of land in question. Her request was granted by the Municipal Court in June 2001. In February 2005 it allowed the claim, but the judgment was quashed on appeal by the County Court and the case was remitted for a fresh examination. In May 2009, the Municipal Court dismissed the claim as ill-founded. Ms Ezgeta appealed, complaining in particular that her case had been heard and decided by a court

administrator who had not been authorised to conduct the proceedings at issue under the relevant procedural rules. In October 2010 the County Court upheld the first-instance judgment. Ms Ezgeta then lodged an appeal on points of law and a constitutional complaint. The Supreme Court declared her appeal on points of law inadmissible in October 2011, considering that the value of the claim did not reach the statutory threshold of 100,000 Croatian kunas, contrary to the lower courts' findings to the effect that the value was above that threshold. In March 2012 the Constitutional Court dismissed Ms Ezgeta's constitutional complaint as manifestly ill-founded.

Relying on Article 6 § 1 (right to a fair hearing / access to court), Ms Ezgeta complains that the proceedings before the Buje Municipal Court were conducted and the judgment was drafted by a court administrator who was not authorised to do so under the relevant domestic law and that she was deprived of access to the Supreme Court.

[Lacroix v. France \(no. 41519/12\)](#)

The applicant, Michel Lacroix, is a French national who was born in 1964 and lives in Le Broc (France). He is a geology lecturer. At the relevant time he was a municipal councillor in Le Broc town hall.

The case concerns the criminal conviction of a municipal councillor for public defamation against a mayor and his first deputy on account of remarks made by him at a meeting of the municipal council.

As a member of the finance and tenders committees, Mr Lacroix was responsible for monitoring a scheme for the security and improvement of public land on the Clave road. In 2009 he drew attention to irregularities which, in his opinion, were present in two procurement contracts in connection with the Clave road. In particular, he sent a letter to the prefect for the Alpes-Maritimes *département* and to the regional audit office. Subsequently, at a meeting of the municipal council at which an amendment to the contract entered into with the company chosen to carry out the work was due to be discussed, Mr Lacroix accused the mayor and his first deputy of fraud and called for their resignations. His comments were reported by the daily newspaper Nice Matin.

In November 2009 a preliminary investigation was opened by the State Prosecutor into the terms of the public procurement that had been criticised by Mr Lacroix. In January 2010 the latter sent an email to the Prefect, to which he attached numerous documents, complaining of conduct which he considered to be criminal in nature. Furthermore, Mr Lacroix repeated his accusations in a leaflet distributed in January 2010.

In January 2010 Mr Lacroix was summoned to appear before the Grasse Criminal Court on charges on public defamation on account of the comments he had made during the meeting of the municipal council and in the leaflet. In September 2010 he was found guilty of the offence of public defamation, on the ground that he had not proved the reality of his accusations. He was ordered to pay a fine of 1000 euros (EUR) and to pay each of the civil parties EUR 1 in respect of damages. In February 2011 the Aix-en-Provence Court of Appeal held that Mr Lacroix had forfeited the right to bring evidence as to whether the defamatory statements were true and rejected his plea of good faith. It upheld the first-instance judgment convicting the applicant of public defamation in respect of a citizen responsible for a public service or holding public office. The Court of Cassation declared Mr Lacroix's appeal inadmissible.

Relying on Article 10 (freedom of expression), Mr Lacroix complains about his criminal conviction for defamation.

[Mirzashvili v. Georgia \(no. 26657/07\)](#)

The applicant, Nikoloz Mirzashvili, is a Georgian national who was born in 1971 and was at the relevant time serving a prison sentence in Rustavi Prison no. 2 (Georgia). The case mainly concerns

his complaint that he was not provided with adequate medical care for cancer while in detention.

In August 2005 Mr Mirzashvili was placed in pre-trial detention on charges of theft and armed robbery. He was convicted of those charges in October 2006 and sentenced to ten years' imprisonment, the conviction and sentence being later upheld on appeal.

Before being placed in detention Mr Mirzashvili had undergone treatment for testicular cancer and had been diagnosed with chronic hepatitis C (HCV). Shortly after being placed in detention he was transferred to the prison hospital, where his diagnoses were confirmed and the doctors recommended a consultation with an oncologist and a special medical examination at the National Centre for Oncology (NCO). Mr Mirzashvili stayed at the prison hospital for several months until early February 2006, without a specialist examination, receiving pain medication to treat his symptoms. After several prison transfers and given that his health was still unsatisfactory, he was again admitted to the prison hospital in late February 2006. In March 2006 he was examined by an oncologist, who concluded that the cancer had returned and that the chronic HCV had worsened. In November 2006 Mr Mirzashvili was sent to the NCO for a course of chemotherapy, but he was not sent there again for a check-up and chemotherapy a few weeks later, contrary to the oncologist's recommendations. During the subsequent months Mr Mirzashvili underwent chemotherapy on two occasions but during several periods in 2007 he only received treatment for his symptoms.

In March 2008, following the European Court of Human Rights' indication, under Rule 39 of its Rules of Court (interim measures), that he should be placed in the prison hospital and provided with adequate treatment for his cancer and chronic HCV, Mr Mirzashvili was transferred to the prison hospital. Subsequently he underwent comprehensive specialist examinations both at the prison hospital and at a civilian medical institution.

Relying in particular on Article 3 (prohibition of inhuman or degrading treatment), Mr Mirzashvili complains: that he was not provided with adequate medical care during his detention; and that the material conditions of his detention, both in the two prisons where he was detained and in the prison hospital, were inadequate, in particular because of overcrowding, poor sanitary conditions and lack of outdoor exercise.

[D.J. v. Germany \(no. 45953/10\)](#)

The applicant, D.J., is a German national who was born in 1952. At the time of lodging his application, he was detained in Berlin Tegel Prison. He now lives in Berlin. The case concerns an order for the continued execution of his preventive detention, which, he maintains, was based on an old and insufficient psychiatric opinion.

D.J. was convicted of dangerous assault and sentenced to six years and six months' imprisonment in October 1998 by the Berlin Regional Court, which found that he had stalked his former girlfriend and had eventually stabbed her with scissors with the intention of killing her. At the same time the court ordered his preventive detention. It considered that D.J., who had previously been convicted of similar offences, had a propensity to commit serious violent offences and was dangerous to the public. After having served his full term of imprisonment in February 2005, D.J. remained in detention without a formal decision of the courts because the proceedings were delayed. In June 2007 he was released after the Berlin Court of Appeal had decided that his continued preventive detention without a decision by the competent court was unlawful.

In July 2007 the Berlin Regional Court ordered the execution of his preventive detention, in accordance with the relevant provisions of the German Criminal Code, referring to the view of a psychotherapist and concluding that D.J. was still dangerous to the public. He remained at liberty while his appeal against the decision was pending. During that time, he found a flat and a job, and voluntarily started psychotherapy. In May 2008, the Berlin Court of Appeal upheld the Regional Court's decision, concluding that there was still a very high risk that D.J. would reoffend and commit serious offences. Following that decision, he voluntarily returned to prison. His constitutional

complaint against the courts' decision for his continued preventive detention was unsuccessful, and an application before the European Court of Human Rights in this context was declared inadmissible.

In its first periodic review proceedings, the Berlin Regional Court decided, in October 2009, that D.J. was to remain in preventive detention, finding that it could be reasonably expected that he would commit further offences if released. The court took into consideration a written statement of the prison authorities of March 2009 to the effect that he was not willing to work on his problems and refused any treatment in the detention centre. It also heard D.J. in September 2009, and it relied on two expert opinions dating from 2005 and 2006 respectively, while dismissing D.J.'s request for a new psychiatric expert opinion. At the same time, the court found that D.J. was to be allowed to continue his therapy with the external psychologist, who had treated him while at liberty, which he had not been authorised to pursue since his renewed preventive detention. The decision for his continued preventive detention was upheld by the Berlin Court of Appeal in March 2010. In June 2010 the Federal Constitutional Court declined to consider D.J.'s constitutional complaint against the decisions of the Regional Court and the Court of Appeal.

D.J. was eventually released on parole in November 2013.

D.J. alleges in particular that the October 2009 order for the continued execution of his preventive detention, subsequently upheld by the German courts, was in breach of Article 5 § 1 (a) (right to liberty and security), complaining that his detention was based on an old and insufficient psychiatric expert opinion and that, previous to that order, he had not been authorised to continue therapy with the external therapist.

[Erol v. Germany \(no. 68250/11\)](#)

The applicant, Ramazan Erol, is a Turkish national who was born in 1974 and lives in Aachen (Germany). The case concerns the German courts' decision not to stay the execution of a detention order against him.

Mr Erol was arrested on 20 April 2010, after he had been found, in the back room of the café which he ran, weighing and packaging some 400 grams of cocaine. The following day, the district court issued an arrest warrant in his respect, on the ground that he was strongly suspected of commercial trafficking of a substantial amount of drugs and that there was a risk of absconding. In July 2010 he was charged with three counts of commercial trafficking of a substantial amount of drugs, and on 29 September 2010 he was convicted on one of those counts and acquitted on the other two. The district court sentenced him to two years and six months' imprisonment.

While appeal proceedings against the judgment – brought by Mr Erol and the public prosecutor – were pending, the district court decided not to grant Mr Erol's appeal against the order for his continued detention and referred the matter to the regional court, which, on 7 October 2010, dismissed the appeal against the detention order. After the regional court had decided not to grant another appeal by Mr Erol against that decision and to refer the matter to the Cologne Court of Appeal, that court informed him that it was considering staying the detention order, asking him to clarify an offer he had made for his family to furnish security of 10,000 euros (EUR). On 3 December 2010 the Court of Appeal dismissed the appeal, however, endorsing the assessment of the lower-instance courts to the effect that there was a risk of absconding; it noted in particular that Mr Erol was unemployed, that his wife was also a Turkish national, that his children were of a young age and that his parents owned a holiday home in Turkey. It stated that it would nonetheless consider staying the execution of the detention order if he was to furnish the amount of security in question directly himself. Since his family was unwilling to put the necessary means at his disposal, the court was not ready to stay the execution, concluding that the family ties were not strong enough to prevent Mr Erol from risking forfeiture of the security by absconding.

Mr Erol's conviction became final on 3 January 2011, after both parties had withdrawn their appeals. On the same day the district court stayed the execution of the detention order after a number of

conditions – including the furnishing of security of EUR 5,000 – had been fulfilled, and he was released. The Federal Constitutional Court declined to accept for adjudication his constitutional complaint against the Cologne Court of Appeal's decision of 3 December 2010.

Mr Erol alleges a breach of Article 5 § 4 (right to have lawfulness of detention decided speedily by a court), maintaining in particular that the Court of Appeal wrongfully considered that there was a risk of his absconding and that the decision was arbitrary.

[Stollenwerk v. Germany \(no. 8844/12\)](#)

The applicant, Christof Stollenwerk, is a German national who was born in 1967 and lives in Düren (Germany). The case concerns proceedings to review the lawfulness of his detention.

Having previously been stopped on two occasions with over ten grams of heroin, Mr Stollenwerk was arrested on 27 August 2010, after over 15 grams of heroin had been found on him. The district court issued an arrest warrant in his respect on the ground that there was a strong suspicion that he had been trafficking drugs and that there was a risk of absconding. He remained in detention on remand, the lawfulness of which was reviewed eight times by the courts. On 6 December 2010 Mr Stollenwerk was convicted of three counts of large-scale drug trafficking and sentenced to two years and six months' imprisonment. In a decision on the same day, the district court ordered the continuation of his detention.

Mr Stollenwerk's subsequent appeal against the decision relating to his detention was dismissed, and on 5 January 2011 he lodged a new appeal against that decision. He requested that the observations of the Düsseldorf Chief Public Prosecutor's office be sent to him so as to be able to reply to them. Mr Stollenwerk's counsel received the prosecutor's written observations on 3 February 2011 and submitted a reply to the court of appeal on 10 February 2011. Following his telephone inquiry to that court on the same day, the counsel learned that on 3 February the court had already decided the appeal and dismissed it. The counsel then requested a subsequent hearing, but that request was dismissed as inadmissible by the court of appeal on 25 February 2011, finding that Mr Stollenwerk's right to be heard had not been violated, that the prosecution authorities' observations had not included any facts unknown to him and there had therefore not been any need to serve them on him.

In July 2011 the Federal Constitutional Court declined to accept Mr Stollenwerk's constitutional complaint for adjudication.

Relying on Article 5 § 4 (right to have lawfulness of detention decided speedily by a court), Mr Stollenwerk complains that the principle of equality of arms was violated in his case because the appeal court took its decisions of 3 and 25 February 2011 without giving him the opportunity to reply to the written observations of the prosecuting authorities.

[Dimitras and Others v. Greece \(nos. 59573/09 and 65211/09\)](#)

The applicants, Panayote Dimitras, Nikolaos Voulgaris, Vasiliki Koukoulioti, Markos Moschos and Dafni Tsakyraki, are Greek nationals who live in Glyka Nera, Athens, Maroussi, and Ambelokipi (Greece). They were all entitled to vote in the elections held on 4 October 2009.

The case concerns the prohibition on publishing opinion polls on voters' intentions during the fifteen days preceding the date of certain elections, and also the ban forbidding the media from broadcasting or re-broadcasting them.

A 2009 law had re-enacted a legislative provision of 2007, pursuant to which the publication and dissemination by the media of political polls on voting intentions were forbidden throughout the duration of campaigns in legislative elections, European Parliament elections and referenda, until 7 p.m. on election day. In addition, throughout the same period radio and television broadcasters, magazines, newspapers, political parties and candidates were also forbidden from disseminating to

the public any research on political trends, the public's opinions and preferences with regard to the political parties, political questions or personalities, and any other economic and social issues. The law provided for fines ranging from 30,000 to 300,000 euros (EUR) for failure to comply with those provisions.

Relying on Articles 10 (freedom of expression), 13 (right to an effective remedy) and 14 (prohibition of discrimination), as well as on Article 3 of Protocol No. 1 (right to free elections), the applicants, in their capacity as electors, allege that the ban on publishing opinion polls was in breach of their right to freedom to receive information during the October 2009 elections. Given the duration of this ban, they also complain that they were deprived of free access to information permitting them to exercise their right to vote effectively. Lastly, they submit that no effective remedy is available in Greece capable of redressing a breach of freedom to receive information.

[Pialopoulos and Others v. Greece \(no. 2\) \(no. 40758/09\)](#)

The applicants, Michael Pialopoulos, Aristofanis Alexiou, Nikolaos Georgakopoulos and Aristeia Pialopoulou, are Greek nationals who were born in 1951, 1930, 1964 and 1949 respectively and live in Athens. The case concerns an expropriation order in respect of a plot of land belonging to them.

The applicants' land, located in Neo Psychiko (Athens), was subject to a series of expropriation orders from 1988 onwards. The first was issued in March 1988, the second in May 1990 and the third in August 1993. The first and third orders were set aside in 1991 and 1995 respectively and the applicants received compensation for the damage sustained. In January 2004 the applicants asked the Athens Prefecture to declare the second expropriation null and void, arguing, in particular, that they had been awarded no compensation and that no decision had been taken concerning the designated use of the land. In January 2005 the prefect decided on his own motion to lift the expropriation order. The implicit result of this decision was that the contested land could only be used for the construction of housing.

In April 2005 the municipality of Neo Psychiko applied to the Supreme Administrative Court seeking to have that decision set aside; it requested and obtained the suspensive effect of its appeal. In January 2009 the Supreme Administrative Court, without calling into question the lifting of the expropriation order, held that that measure did not make the land suitable for construction and that, pending completion of amendments to the urban development plan, the question of the status of the property in question had not been settled in terms of the urban development plan. It also noted that the land was located in an area of very dense construction and that it represented one of the last "green areas" in the municipality. It concluded that no administrative entity, with the exception of the President of the Republic, could amend the urban development plan. It therefore set aside the prefect's decision and remitted the case to the authorities for a decision on the land's urban development status. On 5 October 2016 the relevant presidential decree was adopted.

In June 2006, then in July 2010, the applicants brought two unsuccessful actions seeking damages for the loss of enjoyment of their property. The proceedings in respect of the second action are pending before the Supreme Administrative Court.

Relying on Article 6 § 1 (right to a fair hearing), Article 13 (right to an effective remedy) and Article 1 of Protocol No. 1 (protection of property), the applicants allege that they are victims of *de facto* expropriation, on the grounds that their rights over the land in issue had been uncertain for 22 years. They also claim that they have been deprived of an effective remedy that would have enabled them to request that the expropriation be annulled.

[M.L. v. Norway \(no. 43701/14\)](#)

The applicant, M.L., is a Norwegian national who was born in 1987. The case concerns her complaint about the placement of her son in a foster home under the care of people who are not her relatives.

M.L. is the mother of two children, who are half-brothers. Her older son, born in 2008, was taken into permanent public care by the authorities in 2010 and placed with her mother and stepfather. Her younger son, X, who was born in February 2012, was placed in emergency foster care by decision of the municipal child welfare authorities in June 2012, after they had been notified by other public authorities and by a private individual that M.L. was unable to take care of him. She had previously been diagnosed with a hyperkinetic disorder and had a history of psychiatric treatment. That decision was upheld by the County Social Welfare Board.

Subsequently the child welfare authorities requested the Board to issue a public care order for X to be placed in a foster home and for M.L. to be granted supervised access rights. Concerning the question of where X should be placed, the authorities considered that although M.L.'s mother and stepfather had previously been approved as foster parents for her older son it would not be in X's best interest to be placed with them. M.L. objected to the request for an order of public care and maintained that, if such order be granted, X should be placed with her mother and stepfather. In October 2012 the Board granted the request for an order of public care and decided that X should remain in the home where he had been placed as an emergency measure. The Board considered in particular that X might be vulnerable due to attention-related difficulties and that taking care of another foster child would be a strain for M.L.'s mother and stepfather. In January 2013 X was transferred from the emergency home to a foster home.

M.L. appealed to the City Court, which, in July 2013, upheld the Board's decision. In addition to the Board's assessment, the court considered that X had become attached to his new foster mother after moving into his latest foster home and yet another change would be harmful to him. Moreover, relying on the opinion of a psychologist, the court considered that M.L. had closer emotional ties to X than to her older son, which could be challenging if X were to be placed in foster care in the same home as his older brother. M.L. appealed against the City Court's judgment in so far as it concerned the choice of foster home. Both the High Court and the Supreme Courts rejected her appeals.

M.L. complains that the authorities' refusal to place her younger son with her mother and stepfather was in breach of her rights under Article 8 (right to respect for private and family life).

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Goldnagl v. Austria (no. 6822/12)

Ritz v. Austria (no. 53911/11)

Dimitrova and Others v. Bulgaria (no. 39084/10)

Karzhev v. Bulgaria (no. 60607/08)

Antonierias v. Greece (no. 43416/13)

Kalimani and Others v. Greece (no. 37997/12)

Katsiouras and Others v. Greece (no. 44134/13)

Maraggoulis and Others v. Greece (nos. 31605/14, 31612/14, 31618/14, 31621/14, and 31749/14)

Nikolouzos v. Greece (no. 16474/11)

Papadopoulos v. Greece (no. 3327/12)

Papadopoulos and Others v. Greece (nos. 34924/10, 12472/11, 20401/11, and 16248/12)

Mavrakis v. Greece (no. 21591/13)

Papaioannou v. Greece (no. 54019/12)

Messana v. Italy (no. 37189/05)

Ćorović v. Montenegro (no. 16901/11)

Jovićević v. Montenegro (no. 45469/13)

Budnik v. Poland (no. 61928/13)
Grabowski v. Poland (no. 57449/13)
J.G. v. Poland (no. 44114/14)
Korzeniewski v. Poland (no. 41056/12)
Kudrański v. Poland (no. 59038/11)
Ruta v. Poland (no. 31007/15)
Żelawski v. Poland (no. 16103/15)
Bayar v. Turkey (no. 47098/11)
Köken and Others v. Turkey (nos. 53146/11 and 10976/12)
Özütemiz and Others v. Turkey (no. 64289/12)
Şan v. Turkey (no. 78906/11)
Uykur v. Turkey (nos. 22879/10, 22883/10, and 22939/10)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.